

STEPHEN H. BRANCH'S

ALLIGATOR.

VOLUME I

No. 23

SEPT. 25, 1858

STEPHEN H. BRANCH'S

ALLIGATOR.

VOLUME I

No. 23

SEPT. 25, 1858

The Project Gutenberg eBook of Stephen H. Branch's Alligator, Vol. 1 no. 23, September 25, 1858

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Stephen H. Branch's Alligator, Vol. 1 no. 23, September 25, 1858

Editor: Stephen H. Branch

Release date: June 30, 2017 [eBook #55015]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/55015

Credits: Produced by The Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK STEPHEN H.
BRANCH'S ALLIGATOR, VOL. 1 NO. 23, SEPTEMBER 25, 1858 ***

Transcriber Notes

Obvious printer errors, typos and missing punctuation fixed. Misspellings in the pupil's speech in the Stephen and his Adult Pupil story have been retained, as have archaic spellings and inconsistent hyphenation.

The cover has been created by the transcriber and placed in the public domain.

The table of contents has been created and added by the transcriber.

Early Boyhood and its Merry Pastimes.	<u>1</u>
The Alligator Lives for Another Week.	<u>2</u>
Stephen and his Adult Pupil.	<u>3</u>
Stephen H. Branch, in his Cell at Blackwell's Island—A Mournful Scene.	<u>3</u>
Advertisements	<u>4</u>

STEPHEN H. BRANCH'S
ALLIGATOR.

Volume I.—No. 23.

SATURDAY, SEPTEMBER 25, 1858.

Price 2 Cents.

STEPHEN H. BRANCH'S ALLIGATOR.

Early Boyhood and its Merry Pastimes.

I remember the woman's school at four years old, and the merited chastisement of the school marm; my desperate descent on the sugar bowl; the military company of which I was commander; my annual cries in the trundle bed at 12 o'clock and one second, A. M.: "I wish you merry Christmas, Ma,—I wish you happy New Year, Pa,—now gim me cent;" with my father's: "Go to sleep, you young rascal, or I'll come and spank you;" the two cents I always got on the 4th of July, if I had been a good boy, and the solitary penny if I hadn't; the death of my mother of twins; the copious tears of my father and Aunt Lucy; my grief at her sudden demise; the country boarding school, and the blast of lightning that felled me to the earth, while whittling on the summer green; my eyes soon open on the glories of the lurid universe, and I scamper into the pretty cottage, and bound into the arms of my aunt, who nearly smothers me with affectionate embraces; the storm passes; a bow appears, with crimson arrows, and lingers on the concave's rosy verge, till Venus gleams through the twilight leaves, when its gorgeous hues are veiled by the revolving spheres, and it descends the dazzling west.

Whose Archer follows the resplendent sun,
Before whose darts the stormy Furies run;

the moon ascends the east in matchless splendor, and roams in tranquil beauty through infinitude, spreading its snowy light on vale and mead, that vie with lakes of liquid silver; my aunt lingers at my bed, while I say my evening prayer, and invests my heart with sacred feelings; myself and brother William, on our way to school, through a dreary wood, espy a boy in a wagon, when I exclaim: "Why, Bill, there's our brother Albert;" Bill stares and says: "Steve, your perceptions are very foggy, and I begin to think you aint got good sense;" I closely scan the boy, and smile, but elicit no response, the little rogue riveting his bright blue eyes on the vacant air; Bill passes on to school, with: "Steve, you are raving mad, and I'm going to tell Aunt Freeman so;" when I address the stranger thus: "Little boy, you look like my brother Albert, and this horse and wagon resemble ours, and won't you please to tell me if you aint my brother Al, who lives far away from here, in a place called Providence? I always dearly loved him, and I havn't seen him for a long time now, and I would like to see him very much; come, now, little boy, aint you Ally Branch, and if you are, won't you please to tell me so?" Tears roll down his pale cheeks, followed by the sweetest smiles, (like simultaneous rain and sunshine,) extending his arms, with: "How do you do, dear brother Stevy;" I scream; dart into the wagon, and, placing my arms around his neck, fondly kiss him. And then I made the woods ring with my cries for Bill to return, and behold our dear brother, found so mysteriously alone in the forest wild. Bill slowly returns; and I hear the echo of a laugh, and see a man emerge from the monarch oaks, whom I discern as father, whose playful stratagem blares brightly before my enraptured vision. And with the velocity of light, I spring from the wagon, and at a bound, am in the embraces of my adored father. The vail slowly passes from the eyes of Bill, who stands like a statue in the dim perspective, crying lustily over my triumphant conquest. We all shout and wave our hands, and Willie bounds into Albert's and father's arms, whose fervent kisses soon dispel his tears; when his crescent and revolving eyes gently threaten to eclipse the sun and moon with hilarious splendor; three happy brothers then rock the forest solitude with merry vociferations, and run like deer, and sing like infant Jubals, with sweet responses from congenial birds, prancing on the oaks' majestic branches. And with hearts of gladness, we

spring like hounds into the wagon, and return to Aunt Freeman's, and that I regard as one of the happiest days of my early boyhood. On the following morn, we leave for Providence, which I scarcely reach, ere our yard is a camp of boys, eager to embrace their favorite commander, after his long captivity in the desert wilds of Woodstock; myself and Albert soon go to another country school; we board with a minister who has a large family, and a small salary, which was tardily and scantily paid with very poor provisions; myself and Al don't like the fare; has fried pork too often for breakfast, and pork and beans for dinner, with a cold cut of pork and beans at nightfall; and we enter our solemn protest against so much fried hog, and so many baked beans; we protest, too, against his not fastening the doors and windows nights, as father does at home; we hear strange noises nights, while abed; and respectfully implore him to put locks on the doors, and nails in the windows, who refuses, and says, that good boys are never afraid of robbers or assassins; we still hear dreadful sounds at midnight; and bury ourselves, head and all, in the bed clothes; sweat terribly, and nearly smother; grow pale; lose flesh; get very weak; have cold night sweats; finally despair, and threaten to leave for home; write long letters to father, full of bad writing and spelling, who doesn't answer them, because he can't read them; we start for Providence; our sacred host pursues us on a cadaverous horse, whose ribs rattle, and captures us in the haunted woods, where, in old times, a man was murdered, and two lovers hung themselves, because their parents wouldn't let them marry; I and Al were hurrying through this dreadful wood, when old cadaverous and the parson pounce upon us, who threatens to whip us if we don't return, and cuts a switch for the purpose; his eyes roll terribly, and, as I once heard he was slightly insane at times, and, fearing he might murder me, I gave the wink to Al, and we concluded to return, very gently shaking our heads and fists, with threats of telling our father all about it some day, who was a Justice of the Peace, and could lock up any body, and have them hung beside; to silence our unceasing clamors, the parson gets some cheap second-hand locks, and rusty nails, fastens the doors and windows nights, and gives us fried liver twice a week for breakfast, and lets pork and beans slide awhile, with very tender veal instead; don't hear strange sounds at night any more; sleep very soundly; don't hear the cheerless midnight winds as of yore; get fat as butter; are very contented; Fourth of July close at hand; father comes after us; shed tears of joy, and run and jump like wild cats, and get home alive

once more from a country boarding school; go to a party on the night of our arrival; Oscar Rivulet and Clara Violet are there; at the party's close, I can't find my hat, and while in its vigorous pursuit, Oscar takes the arm of Clara, when I step up and whisper in his ear, that I will chastise him the very next day for cutting me out; Oscar and Clara depart; I find my hat in the oven, where Oscar doubtless put it, and begin to cry with rage; to console me, my aunt places the arm of Flora Rosebud in mine, who was a dashing little belle, with whom I slowly ramble towards her home beneath a brilliant sky; soon after I bid Flora good night, at her father's door, a dark cloud rapidly arose and obscured the moon, and I became afraid, and ran fleetly home, expecting to meet an assassin at every corner's turn, but when I heard the cheerful watchman's cry of "half-past eight o'clock, and all's well," and beheld his noble form in the distance, my fears are tranquilized, and I walk as erect and firm as the hero of many battles, and loudly boast of my courage, after I get snugly in the trundle bed with Albert, the shield of my father's voice above me, to fortify my pretended valor. On the following day, my step-mother struck me on the head with a jacket with brass buttons, for my impudence at dinner in my father's absence, because she wouldn't give me more boiled onions, of which I was very fond; the blood flowed freely, and she was terrified lest I would bleed to death, and she be hung; she dressed the wounds most tenderly, and gave me plenty of onions and sugar, and warmly coaxed me not to tell father when he came to tea, lest he would gently chide her for her laceration of the skull of the prolific brain of the darling son who bore his own father's promising name of Stephen; and for many days she gave me candy and peanuts, and gave me so many onions that I have loathed them since; she even poulticed my lacerated head with boiled onions, which I smell to this day; I had the ear-ache, and she even put a small roast onion in my ear to check the pain; I once passed through Weathersfield, (where onions are as thick as leaves in the Vale of Vallambrosa,) whose atmosphere caused me to fertilize its streets with bile; my step-mother finally stops my supplies of sweetmeats, and I threaten to tell my father of her violent blow, and show him my scars, when she surrendered, and gave me sweet things for a long period; and she saved me many a whipping from my father, when I was mischievous, lest I would tell and show the relics of her trouncing, which gave me a boundless latitude for pranks until the scars all passed away; at this time, my dog Watch was drowned, but he rose the ninth day, and I buried him at the foot of my

father's garden, with funeral honors, a neighboring dog, in traces, bearing his precious body to the grave, over which I placed turf and stones in memory of a dog I dearly loved; after the funeral, Cornelius Snow, nicknamed Flop, called me names, and I told my father that "Flop Snow had called me names, and I meant to lick him for it," when my father effected a reconciliation, by allowing Cornelius to call me Steve as long as I called him Flop. He had long been at the head of my class, at school, and I had never been at the head, which mortified my father, who told me if I would get above Flop through good spelling, he would give me a sixpence; I tried long and hard, but I couldn't do it; so, on a very stormy day, while myself and Flop were the only boys of our spelling class at school, I told him that if he would make a mistake in spelling, and let me keep at the head until school was over, I would give him three cents; Flop consented, and broke down on beef, which he spelled *b-e-a-p-h-f-e*, for which the teacher boxed his ears, and made him see ten thousand sparkling stars; I got sixpence from my father, and gave Flop half of it; there was a full class the next day, and down I went to the foot, my usual place; my father learned of my collusion with Flop, and gave me a tremendous whipping; the next day I went several miles down Providence river, in a canoe with Elias Smith and Joseph Fuller, and was gone four days, and all the town was terribly excited lest we were lost; but Mr. Proud, a neighbor, of whose peaches and melons I was very fond, stuck to it like beeswax, that I would never be drowned, while hemp grew in Kentucky; the day after my return, my step-mother whips Albert for stealing a small lump of sugar, at about 11, A. M.; father usually came to dinner at 12, M.; Ally cried for a long time; but he began to lull, and I was afraid he wouldn't hold out until father got home; so, I got Ally down cellar, and pinched him, and pulled his hair, to make him keep it up, until father got home; it being near twelve o'clock, and my step-mother knowing my influence over Ally, told me if I would pacify him before father came to dinner, she would give me as much sugar as I wanted for a whole week; I accepted the bribe,—but Al overheard us, and declared that he would cry like thunder, until father came, if I didn't give him half the sugar; we finally compromised, by allowing Ally a quarter of all the lumps I got; a few days after, while returning from a Saturday excursion down the river, my brother Bill cut up so, that the boat capsized, in very deep water, a short distance from the shore; Jim Baker and myself got on the bottom of the boat, while Bill's feet and head were entangled in the ropes and sail;

Sam Thurber and others swam to the shore; Jim Baker and myself couldn't swim, and we expected to be lost; and we bellowed murder like fury; amid this awful scene, the owner of the boat came down the shore, and cried: "Pay for that boat, you rascals, pay for that boat;" he had scarcely breathed these brutal words, when down went Jim Baker and myself to the river's bed; I rose to the surface first, and went down again, when Jim grabbed my leg, and we came up together, and a noble sailor seized and bore us to the shore, where we were put in barrels, and pints of water squeezed out of us; Jim and myself open our dewy eyes, shake hands, and walk home arm in arm, with the sailor behind, thrashing the boat proprietor for demanding pay, instead of coming to our rescue, whose unparalleled inhumanity the gallant tar couldn't tolerate. I went to bed, and had a horrid night-mare, and dreamed of sharks and whales. On the day after the boat calamity of Jim Baker and myself on Providence river, I arose with the glorious sun, ate a spare repast, and went to school. My stomach yet complained of salt water, and my head and books were at rapiers' points. The teacher, SHAW, vainly chides me for my indolence, and summons me before him, and demands my spelling-book, and gives me *genuine*, which I spell "*gen-ner-wine*." The school is convulsed in the wildest screams. Shaw seizes his *lignumvitae* ruler, darts through the aisles, rolls his big gray eyes, and bangs the desks until the dust rises into clouds, when the mirthful tumult is hushed into the silence of a tomb, and he bids me take my seat, with furious cuffs of both ears. My brother Bill had been snickering in his hat, and sleeve, and handkerchief, until he had saturated them all with his hilarious tears, and, as I passed him on my way to my seat, he burst into a *genuine* Branch laugh, and all again was chaos. The scholars were more uproarious than before, and Shaw rages furiously, and calls up Bill, when all is silent terror, and every eye is riveted on its book. Shaw demands Bill to extend his right hand, which he declines to do, because he has a felon, and tender warts all over his knuckles. Shaw then commands him to hold up his left hand, and Bill obeys, when Shaw's eyes flash sparks of fire, his cheeks are deathly pale, and his ferule descends with tremendous violence

On the vacant air,
As Bill's hand wan't there!

The scholars roar again, and clap their little hands, and stamp their feet in the wildest ecstasy, when Shaw bellows like a rabid bull, and gesticulates fatality to the rebellious scholars, whose eyes fall quickly on their books, and all violently move their pallid lips, with pretense of study, while a terrible revenge rankles in their hearts, for Shaw's cruel treatment of Bill, who has so many warts and a felon, with salt water still gurgling in his ocean belly. At Shaw's wrathful behest, Bill again raises his trembling hand, and keeps his eye fastened on Shaw's; and as the ruler nears his palm, he dodges, when Shaw flies to his scholastic throne for his cow-skin, and descends his ramparts with the pomposity of a king, calmly surveying his juvenile and affrighted subjects, and directs Bill to remove his jacket, who firmly declines. Shaw seizes him, and Bill cries murder; the girls weep and faint, and water is sprinkled on their cheeks and foreheads; the boys shake their fists, and dare each other to rush to Bill's rescue, but Shaw threatens them with utter annihilation if they interfere, and the belligerent and affrighted boys leave poor Bill to his unhappy fate.—Fortunately for Bill, Shaw is short, and of very slender mould. Bill is stout, knows well the physical weakness of his adversary, and proves himself fully equal to the awful crisis before him. For, while Shaw strives to get Bill across his knees to switch and spank him, Bill, by a sudden and very elastic movement, gets between, and coils himself, like a snake, around Shaw's legs, and pinches, and bites, and tears his pants, and finally trips him, and down they go, with Bill on Shaw, and with both hands so firmly and desperately clenched in Shaw's white cravat, as to make his tongue protrude. The girls faintly titter, while the stoutest and bravest boys bang their desks, and wildly shout with joy. The panting combatants spring to the floor, and, like two roosters, have a moment's respite; Shaw is pale, and trembles with shame, and relents, and in feeble and broken accents, directs Bill to take his seat; the silence of a Capulet pervades the school, when my tremendous horse laugh breaks the calm; the scholars scream again with frantic contortions; Shaw's eyes roll like a demon's, and his voice rises high above the universal clamor, which slowly subsides, and all is still again; Shaw then comes on tiptoe to my desk, and grabs and drags me to the aisle, with one hand clutched in my throat, and the other in my long hair, when I grab him in a tender spot, and make him squeal; and so severe and unrelenting is my grasp, that he gladly gives freedom to my throat and hair, and implores, in tones of excruciating agony, to release my hands. I slowly do so, when he re-seizes me, and,

dragging me several feet by my hair, kicks away the scuttle, and casts me headlong beneath the schoolhouse, closing the scuttle over me; I can hardly sit upright in my new abode; all is darkness; I smell the awful perfume of a dead skunk; little mice squeal, and run over me, and nibble at my mouth and nose, and big and hungry rats approach, and violently attack me, which I keep at bay with my feet and hands, and hideous yells, and they finally scamper to their holes, while a myriad of mice remain to torment me; I chew tobacco, to drown my abject sorrow; it is the first cud that ever graced my mouth; I cover it with the fragment of a newspaper, to prevent my giddy exhilaration through a too strong taste of tobacco; I soon got deathly sick, and thump and scream for Shaw to let me out, who heeds not my piteous cries; I am desperate, and resting my hands and feet on the ground, I get an irresistible purchase, and with a mighty movement of my back, I burst the scuttle with a tremendous crash, and dart from my narrow and dreary cavern into the schoolroom, and run down the aisle, vomiting at every step; the scholars are nearly gone; as I approach the door, Shaw grabs me, when I belch the purest bile plump in his face, which, of course, was purely accidental; Shaw is blinded with tobacco bile, and wipes his cheeks, and nose, and mouth, and eyes, and commands me to go to his desk; I refuse; he then expostulates, and breathes kind words, which allay my anger, and check the flow of tobacco and salt water bile; I go to his desk; he dismisses the few scholars that remain, save my weeping brother Bill, curled in the corner; Shaw laments the sad occurrence; hopes we will be better boys, and permits us to go home; on our arrival, father is at tea, listening to brother Albert's version of the story; Bill and myself seat ourselves at table, when father directs each to give his melancholy narrative; Bill is hungry, and slowly begins, and lacks vivacity, and the impatient father turns to me for the rapid and vivid analysis of the horrid scholastic anarchy and rencontre then flying on exaggeration's wide-spread wings, and distracting the peaceful firesides of Providence; I swallow the delicious food already in my mouth; cleanse my throat with a prolonged swallow of commingled tea and sugar, and tell my story in a nervous strain; my father's eyes are large, and fixed on mine, throughout my exciting narrative, at whose close, he gets his hat and cane and autumnal mantle, and bids myself and Bill to follow him; we penetrate the pitchy darkness, and after varied street meanderings in the turbulent and piercing evening winds, we ascend the steps, and tap at the door of Shaw; we enter his pale presence, who is extremely courteous to

father, who is a member of the Visiting School Committee, and invested with power of a teacher's dismissal, which Shaw now fears; father opens his deadly batteries, and Shaw, perceiving no possible escape, pleads extenuation for the violent temper that nature gave him; spoke of William as a very good and studious boy, (a truth,) and of Stephen as a meritorious and enthusiastic youth, who dearly loved his books, (a lie,) and deeply regretted that his heated passion led him to the chastisement of William, and the incarceration of Stephen; and declared in tones of warm sincerity, that if father would forgive him, he would never whip nor imprison us again, but lead us up the hill of science through gentle and persuasive means; father pities and admires his humility, and, rising to depart, directs Shaw to inform him every Friday by letter, how many days William and Stephen have played the truant during the week, and with what facility we recite our lessons, and what our general conduct is; Shaw's eyes flash joy at these delightful and magnanimous behests, while the eyes of Bill and myself flash guilt and fury at Shaw's apparent conquest, because all our future sport is spoiled, and mine, especially, as I played truant about twice a week, and Bill once a month; and because I seldom got my lessons well; Shaw and father extend their hands, and shake a warm good night: and while they linger at the outer door in friendly conversation, I slyly crawl through father's legs, to get into the street as soon as possible, and away from Shaw's victorious presence; the last shake of hands transpire between father and Shaw, who slowly closes the door with a beatific smile; father, myself, and Bill muffle ourselves in our fervent garments; it snows and blows very hard; and, as we walk slowly homeward against the snow and wind, father delivers an affectionate and mournful lecture, gently chiding us for the trouble we had caused him, and the rapid increase of his snowy locks; kindly warning us that we were constantly exposed to the sad fate of orphans, our tender mother being already gone forever; and with a trembling voice implored us to be good boys, to study hard, to be kind and obedient to Mr. Shaw, to cultivate manly virtues, and strive to become intellectual giants, and the pillars of our country, in peace or war, after the fathers of his generation had passed from the field of action. We both wept bitterly, and besought our dear and indulgent father to forgive the past, with assurances of our efforts to please him and our teacher in the future. We reach home, and father kindles a crackling, hickory fire, and gives us cider and walnuts, and tells us pretty stories, and puts on extra bed clothes,

because the night is so piercing cold, and tucks our bed at the sides, to keep out the biting air, and then directs us to clasp and raise our little hands to God, and say after him our evening prayer of

“Now I lay me down to sleep,
I pray the Lord my soul to keep,
If I should die before I wake,
I pray the Lord my soul to take;”

and then gives us a parting kiss, and pats our little foreheads, and breathes sweet tones of affection until he passes from our view. Bill and myself make good resolves for the future, and breathe a fond “good night!” and then embrace the tranquil slumber and innocent dreams of early boyhood.

Office—114 Nassau Street

THE ALLIGATOR.

New York, Saturday, September 25, 1858.

The Alligator Lives for Another Week.

The Ladies have saved the ALLIGATOR for six days more, in which God made the gorgeous realms of infinitude! Last week, I proclaimed that unless advance subscribers or patriots came to the rescue of the wounded and bleeding ALLIGATOR, he must soon expire amid the tumultuous exultations of his proscriptive adversaries. The gentlemen responded in companies, but

the ladies in battalions, and soothed and rescued the poor ALLIGATOR from the jaws of immediate death.^[1] Without the sympathy of woman, man soon droops, and totters, and expires. Woman is the prolific source of all that glorifies the cottages, and mansions, and palaces of the globe. And her benevolence ameliorates the poor, and oppressed, and disconsolate in every region of the earth. From Eve to Mary, the mother of Washington, the history of woman is a brilliant constellation. Without the pure and patriotic Mary, there would have been no Washington,—and without Washington, the Americans would have had no country, and the oppressed of all lands no asylum of liberty and prosperity. In the sacred bosom of her family, woman is like the queen of night amid the pretty stars. In our infant years, she nourishes, and shields, and cheers us in our precarious journey to maturer years. She imparts the first kiss, and moulds the first prayer, and is prouder of her offspring than a queen of her throne. As the child buds, and blooms, and blossoms, and ascends the hill of moral and scholastic science, she watches every pace with breathless solicitude. And in penury or affluence, in bondage or freedom, in power or on the scaffold, she clings with intense affection to the adored objects of her creation. Every family is a dominion. The father is a king, and the mother a queen, and the children their subjects. The same laws govern a family as a kingdom. Judicious penalties follow disobedience, and a good mother imbues the heart and mind of her offspring with humanity and wisdom that govern the world. And over all presides a Being of beneficence and ubiquity, who wields the destinies of a Universe. Woman, under God, is the source of all that cheers and ennobles man in his weary pilgrimage from the cradle to the grave, and to her sympathies am I greatly indebted for my recent liberation from captivity and the partial resurrection of my declining fortunes. God bless her, then, and in my sacred orisons and soliloquies, on land or ocean, I will ever cherish her with those grateful emotions that I inherited from the genial heart of my departed mother.

1. If the ALLIGATOR dies, advance subscriptions will immediately be returned to my generous patrons, with my fervent wishes for their prosperity.



WILLIAM MACRAE is the only person authorised to collect subscriptions for the "*Alligator*." And here is his likeness, that when he calls to solicit subscribers, all may know him by a comparison of this accurate engraving with his living face. My Office is at No. 114 Nassau street, second story, front room, where advance subscriptions will also be most gratefully received.

STEPHEN H. BRANCH.



The tomb of Franklin—if a palm flag-stone with the earth can be so called—is concealed from the public view by a venerable brick wall at the corner of Fifth and Mulberry streets, Philadelphia. The remains of the lightning philosopher are deposited there in the old burial ground belonging to Christ Church. An appropriate monument has been accidentally reared above them, in the shape of a telegraphic post, and the lightning is at

constant play over, if not under the eye of the man who first chained it to the earth.

Stephen and his Adult Pupil.

THE FIRST LESSON.

Stephen.—What do you first wish to learn?

Pupil.—I desire first to review my figures.

S.—How far have you cyphered?

P.—I went through the book several times, when I was a boy.

S.—Whose Arithmetic did you study?

P.—Mr. Dollbay's.

S.—Daboll's, I suppose, you mean.

P.—Ah, yes, it was Daboll's; and I remember him very well. He was a fine man, and understood figures very well.

S.—Then you went through his book several times?

P.—O yes, I can take my oath of that.

S.—How much is twice nothing?

P.—That is two, of course.

S.—How much is nothing times two?

P.—That is two.

S.—How much is one-half times one?

P.—One.

S.—How much is four and a-half times four and a-half?

P. (scratching his head)—That must be about thirteen.

S.—How much is three-quarters times five-eighths?

P.—I never saw that in Daboll, and to be candid, Mr. Branch, I have long been accustomed to rush of blood to the head, and I had a slight rush just now, and I guess I won't go any farther in figures to-day; but I would like to renew my Grammar studies.

S.—Very well: whose Grammar did you study in boyhood?

P.—Mr. Murphy's.

S.—I presume you mean Lindley Murray's?

P.—Ah, yes, it was Murray's, and he once dined at my father's.

S.—As it is absolutely essential to understand spelling, before Grammar, I will first examine you in a few words, before we embark in Grammar. Can you spell well, sir?

P.—Yes; and I hope you don't mean to insult me with such a question.

S.—Certainly not. Spell Grammar?

P.—Gramer.

S.—No.

P.—Gramar.

S.—No.

P.—How do yau spell it, then?

S.—Grammar.

P.—That's the way I spelt it.

S.—No, sir.

P.—If I didd't, I intended to.

S.—That may be. Spell sloop?

P.—Slupe.

S.—No.

P.—That's the way old Captain Tallman spelt it, when I was a boy.

S.—It is spelt sloop in these days.

P.—Ah, yes, that's correct, I remember.

S.—Spell dough?

P.—Doe.

S.—No.

P.—My grandmother used to spell it so.

S.—It is spelt dough.

S.—Spell God?

P.—Gorde.

S.—No.

P. (is silent for some seconds, and grows pale, and sweats profusely)—
Merciful Heaven! And do you say Gorde is incorrect?

S.—I do. It is spelt God.

P.—Ah, yes, I was mistaken. That's the way I have always spelt it.

S.—Spell scholar?

P.—Skoller.

S.—No.

P.—Skollar.

S.—No.

P.—That's the way I always spelt it, and I'll bet a dollar that's the way to spell it.

S.—That's a bet.

P.—How shall we decide it?

S.—Have you got a dictionary?

P.—Yes. (Examines it.) Well, I declare, you have won the dollar. What a curious way to spell scholar, to put *ch* for *k*. Mr. Branch: who invented language?

S.—The Egyptians.

P.—What old fools they must have been?

S.—Those Egyptians who discovered the alphabet, were the wisest linguists of the human race. And those Arabians who discovered the digits, were the profoundest mathematicians. And, as you can neither spell nor cypher well, I advise you to defer your arithmetic and grammar lessons until you learn orthography.

P.—I don't know what you mean by linguist, nor by digits. And what on earth do you mean by orthography?

S.—Orthography means spelling.

P.—Ah, yes, I thought that was it. Now, Mr. Branch, I am in public life, as you know, and I am very anxious to make a good speech and write a good letter; and, in order to do that, I must understand Grammar. And I think I can spell well enough to study Grammar, Mr. Branch. You have only examined me in a few words, and because I slightly broke down on them, you must not suppose that I can't spell well enough to study Grammar. Just try me in a few more words.

S.—Spell alderman?

P.—Oldermon.

S.—No.

P.—Olldermone.

S.—No.

P.—How, then?

S.—Alderman.

P.—Ah, yes. That's the way I was just agoing to spell it.

S.—Spell Common Council?

P.—Komon Kounsil.

S.—No, sir. It is spelt Common Council.

P.—Is it possible?

S.—Yes. And now spell municipal?

P.—Dam if I don't give that up; for, although I have been a member of the munipicle government, I nover could spell that awful word without looking at the dictionary two or three times; and it always took me a mighty long time to find munipicle, even in the dictionary. Now, do try me on some easier word than that,—won't you, Mr. Branch?

S.—Spell Mayor?

P.—Mare.

S.—No.

P.—How, then?

S.—Mayor.

P.—Ah, yes,—I forgot. That's it exactly.

S.—Spell contracts?

P.—I can spell that fast enough. Kontrax.

S.—No.

P.—Kontracks.

S.—No. It is spelt contracts.

P.—I begin to think my memory is getting bad, for I once could spell all these words. And I have had so many contracts from the Corporation, and have written that word so often, that I am sure I used to spell it correctly. Now give me one more easy word, and if I break down, dam if I don't surrender.

S.—Spell Cable?

P.—I have got a few shares in that precious stock, and I'll bet \$5 I can spell it correctly.

S.—Done.

P.—Kabell.

S.—No. It is spelt cable.

P.—There's a V. And now, although I have spelt several words incorrectly, yet, as I am growing old, I desire to learn as fast as possible; and I want you to give me grammar lessons and teach me spelling at the same time. And if you will learn me very fast, I will let you have one share in the Atlantic Cable, for your instructions.

S.—I would rather have the cash, as I cannot believe that a cord about the circumference of my thumb can permanently connect the hemispheres.

P.—Very well, sir. I have perfect confidence in the Cable enterprise, and I don't care about parting with my stock. So I will pay you in cash for your tuition. Now please give me a lesson in grammar.

S.—Well, I will strive to gratify you,—although I again assure you, that orthography is the basis of grammar, and we shall encounter ruinous obstacles in the construction of the grammatical pyramid, in the absence of orthography and orthœpy.

P.—For the land's sake, what is the meaning of the last word?

S.—Orthœpy means pronunciation.

P.—How queer your jaw opens and closes, when you pronounce that strange word.

S.—I suppose so. I will now give you the first lesson in grammar.

P.—Let me first take a good stiff horn of brandy to brace my nerves. (Drinks.) Now, sir, I am ready for Grammar, which, I repeat, I studied when a boy; and I only desire to review what I know already.

S.—How many parts of speech are there?

P.—What do you mean by that?

S.—I mean, into how many parts of speech is language divided?

P.—Well, by golly, I don't know exactly,—but, from the immense number of words in the Bible, and in all the books at the Harpers, and in the Historical Society, and in all the newspapers, I should think there must be, at the lowest calculation, about five hundred million parts of speech.

S.—There are only nine parts of speech.

P.—I begin to think you are crazy; for, do you think you can humbug me by saying that there are only nine different words, or parts of speech, in the English language? I shall consider it to be my duty to have you put in the Lunatic Asylum, if you talk in that way.

S.—I still assert that there are only nine parts of speech, which are: a noun, article, adjective, pronoun, verb, adverb, preposition, conjunction, and interjection.

P.—Ah, yes, I recollect.

S.—Well, what part of speech is iron?

P.—As near as I can recollect, iron is the seventh, and it may possibly be the ninth part of speech.

S.—No, sir,—it is one of the nine parts of speech I just mentioned.

P.—Ah, yes, excuse me,—I understand. Well, iron must be a conjunction, because it can be heated and spliced.

S.—Iron is a noun.

P.—Ah, yes, I recollect perfectly well that iron is a noun, and I am surprised that I did not remember it, as I have long dealt in iron, and know all about it.

S.—That will do for to-day, and I will resume your grammar lessons to-morrow. Good day, sir.

P.—Good day. I am much pleased wite my progress in grammar, and I will see you again to-morrow with much pleasure. Good day, sir.

[Exeunt,

Stephen H. Branch, in his Cell at Blackwell's Island—A Mournful Scene.

A lovely Family, at the iron door, peeping through its small perforations.

The Father.—What is your name, sir?

Stephen.—My name is Branch.

Father.—For what are you confined?

Stephen.—For an alleged libel.

Father.—On whom?

Stephen.—On Mayor Daniel F. Tiemann, Simeon Draper, and Isaac Bell, Jr.

Father.—What is the period of your imprisonment?

Stephen.—One year. I think I have seen you before. What is your name, sir?

Father.—H——d.

Stephen.—Where do you reside?

Father.—In Charleston, South Carolina.

Stephen.—Ah! The dearest associations of my life are connected with two students bearing your name, who were from Charleston.

Father.—My wife and children: I think the keeper has directed us to the Lunatic Asylum, instead of the abode of convicts. Let us go and ask the keeper to show us to the prison.

Stephen.—Stop, sir. I now most positively discern the relics of your early features. Were you a student at Cambridge in 1835?

Father.—I was.

Stephen.—And your brother also, who was rescued from a watery grave in Boston Harbor?

Father (leans against the iron door, and his frame trembles, and his face assumes a deathly palor).—God of Heaven! And are you the son of Judge Stephen Branch, of Providence, Rhode Island?

Stephen.—I am, sir.

Father (wiping sweat from his forehead and tears from his cheeks).—Dear Stephen: Give me your hand, after our long separation. Alas! my poor brother is dead, whose life you saved in that dreadful squall, in Boston Harbor, twenty-three years ago. (*All weep, and his eldest daughter sobs aloud.*)

Stephen.—Where and when did your noble brother die?

Father.—In Switzerland, ten years since; and in his last days he spoke most kindly of you.

His Wife (in profuse tears).—Have you a wife, Mr. Branch?

Stephen.—Neither wife, nor child, nor parents, nor hardly a relative on earth. And I am glad they have gone down to their happy graves. And I almost wish that I was reposing by their side. The earth is no place for me, nor for those who expose the licentious officials and plundering monsters of this age, who allure spotless females into the horrors of prostitution, and drive the friendless masses into cellars and attics and crowded and pestilential habitations, and into the inclement atmosphere.

Wife.—But why rejoice over the eternal departure of nearly all your kindred?

Stephen.—Because it would have blighted their health and fondest hopes to have beheld me in a felon's dungeon.

Wife.—But you have committed no crime?

Stephen.—I could not do that. And I am in prison, because I have exposed the crimes, and resisted the gilded bribes of official plunderers for a dozen years, and utterly refused to join them in their various deeds of infamy. I could have been affluent, and had my liberty, if I had joined the public thieves, and shared their plunder. And if my parents were alive, although they would rejoice at my exposure of vicious public men, yet they would weep over the cruelty of those who consigned me to this dungeon,

without an honorable trial, and rudely thrust me into the chain-gang of the quarries, and even yearn for my life.

Wife.—Yours seems a hard fate?

Stephen.—Yes; mine is indeed a mournful destiny.

Her Eldest Daughter (whose lovely eyes gleam with tears).—I weep over your misfortunes. I have often heard my dear uncle, whose life you saved at the peril of your own, speak of you in tones of deep affection, and here is a diamond breastpin he gave me in Switzerland, on the Lake of Geneva, on a tranquil moonlight evening, only ten days before his soul's departure for the spirit realms. Take it, dear Mr. Branch, and keep it in remembrance of his affectionate niece. To no other being would I present a sacred gift of my departed uncle.

Stephen (with overwhelming emotion).—Please accept my profoundest gratitude for your precious donation, which I will wear near a heart that dearly loved your departed uncle, with whom I passed some of the happiest hours of my life.

The Youngest Daughter (who is about ten years old).—Dear Mr. Branch: Will you take this sweet rose from me, and let me kiss you through the grate?

Stephen.—O God! This is too much for my poor nerves. (*I shed copious tears, and all weep.*) Yes, my pretty little girl, you can kiss me through the grate. (*And her father holds her up, and I place my pale, and cold, and haggard cheek to a perforation of my cell door, and this affectionate little girl imprints a fervent kiss, which I cordially reciprocate.*)

Father.—God has blessed me with great prosperity, and I will devote my fortune to your restoration to liberty.

Stephen.—Mr. Ashmead, my able and faithful Counsel, assures me that I will soon emerge from prison, through the Supreme Judiciary. I most sincerely thank you for your extraordinary generosity, and for the visit of yourself and wife, and daughters, whom I will cherish all my days.

Father.—When you obtain your liberty, you must come to Charleston, where you will be received with our warmest hospitality.

Wife.—If you come, you shall never leave us.

Eldest Daughter.—You shall have the vacant seat of my uncle at our table.

Youngest Daughter.—Yes; and I will kiss you again—won't I mother?—when you come to Charleston.

Mother.—Yes, my dear child; and you shall give him the sweetest rose in our garden.

Youngest Daughter.—That I will, and pretty flowers, too.

Father.—Good by, Mr. Branch. (*Strives to get his hand through the perforated door, but can clasp my fingers with but two of his.*) Good by, sir—good by.

Wife.—Good by, Mr. Branch. I hope you will be restored to freedom.

Eldest Daughter.—Good by, Mr. Branch. I shall think of you with kindness, after I am gone, and I shall yearn to see you at our home in Carolina.

Youngest Daughter.—Good by, dear Mr. Branch, and I want you to give me another kiss before I go. (*I kiss her, and receive many in return.*) Good by, and you must not forget to come to Charleston, when these bad men let you out of prison. Good by, dear Mr. Branch, and I hope you will not be lonely and cry much after we have gone far away from you. Good by, Mr. Branch.

Stephen.—Farewell, kind friends, and may God ever bless you for your noble sympathy. (*All go, and I prostrate myself on my cot, and am in prayers and tears long after their mournful departure.*)



I cut these lines from a newspaper when I was a boy. I think they bore the Christian name of a lady. I am no poet, and do not know their merit. Perhaps Bryant or Prentice can discern their beauties. Let pure and pensive and wild enthusiasts scan them for congenial spirits, and I think they will preserve these curious meditations which have been in my scrap-book since I was a pale youth, with my classic satchel, in the schools of Rhode Island. Those editors who copy these lines must not credit them to STEPHEN H. BRANCH, but they should say that they came from the jaws of his ALLIGATOR, as their author is unknown, and as that Animal introduces them to the public for the first time in thirty years:

MIDNIGHT MEDITATIONS.

Earth lies dumb before me, and the shadows
Of midnight cast their dim forms athwart it.
Quiet is brooding o'er a silent world,
And the soft hush of slumber seals each lid.
Night is too fair for sleep: with me thought wakes
And treads in distant paths, where human step
Ne'er left an echo on the vacant air.
The gorgeous canopy of heaven is wrapped
In silvery haze: Gems of uncounted wealth
Bestud the lofty concave; and the bright
Moon seems rolling like a silvery ball
Across the trackless æther, mantling the earth
In glory;—while her mellowed light
Falls on my spirit with a holy calm, like that
Of heaven. Tell us—why are we chained to earth?
'Tis far too gross for the immortal mind,
Which yearns for higher realms, and pants in vain
For the full measure of perfection. Oh!
I have gazed upon night's starry volume,
Till I have read long lessons of delight,
And drank the raptures of another world.
Thought, living thought, burns to embrace the whole
Of those deep mysteries eternity
Conceals from mortal understanding; and
The mind speaks out, and questions every beam
Which falls from the bright reservoir of heaven—
Interrogates each plant and breathing thing—
Retires within itself, and calls up every
Faculty—sends powerful fancy forth to
Search through untrod regions, but spends its pow'rs
Unsatisfied, till it sinks down at last
Exhausted by its own intensity.

O for a walk among those stars of light,
Where grandeur fills immensity! I long
To fling my soul upon the pinions of
Eternity, and revel in the blaze
Of glory unrevealed—to gaze upon

Of glory unveiled — to gaze upon
The light that emanates from God's vast throne,
And hear the music of the rolling spheres
As they revolve in mystic circles round
The deep centre of unknown attraction.
Spirits of heaven are hov'ring round me,
And breathe sweet songs of rapture in my ear.
The rustle of their wings is like the sigh
Of leaves, when the soft zephyr moves among
Their quiv'ring branches. Their hallowed voices
Wake the eternity within me, and warm
Aspirations rise from my heart's altar
To the great throne of Uncreated Power,
The wings of seraphim seem wafting me
In thought far through the bright and boundless ether.
O for the freedom of unbodied life!
To rove where thought ne'er ventured—where fancy
Halts, her swift wing wearied in its lofty flight.

I gaze upon the stars, and drink the full
Glory of the midnight heavens—and breathe
The breath of spiritual existence
Till my soul beats, like a captive bird,
Against its prison grates, and longs to soar away, and mix
With immortality.

Are not the stars
Immortal? Do they not live forever
In a joy of light? Have they not looked down
From age to age upon this distant world
And watched its evolutions? Viewed its face
Change beneath the whelming flood—its cities
Sink beneath the earthquake's shock—its mountains
Belch destruction—its boasted empires fall—
Its armies crushed in battle—its proud kings
Fade from earth—its ancient monumental
Grandeur crumble into dust? Yet they roll on,
Creatures of life, a beaming essence,
A mysterious throng of heavenly

A mysterious throng of heavenly
Pageantry. But is there not a region
Far above that envious height; above
The stars; where beings live forever, and
No darkness comes; where light exists for ages,
Unborrowed from the sun; where storms dim not
Its brightness? and where rapture never dies?
Yes, far above the sky-bound ceiling, there
Is light—eternal light—joy unsubdued,
And everlasting life!

Is there such a
Thing as sin? I feel it not. This is a
Holy hour. Nothing exists to me but
Heaven, and heaven's pure habitants; all worldly
Thoughts are drowned in high communing. Is there
Such a thing as pain? I know it not, who
Oft have known it. Heaven's high-wrought happiness
Is mine. This is a peaceful hour, and I
Could deem myself already entered on
Immortal ground, did not this clog of clay
Assure me I am yet of earth, and have,
Perchance, long years of pain, and wo, and sin
To witness, and the dark vale of death is
Yet unpassed by me, though ever near. Well,
If it must be so, welcome the hour that
Breaks these mortal shackles, and lets loose my
Spirit on the wings of life, to find its
Native element and long sought home, if
Heaven at last be mine. Congenial spirits
Of unknown existence! would that your forms
Could be perceived by mortal eyes, that I
Might hold sweet converse with you, and forget
That I am mortal.

Oh! there is that
Within, which tells me I was destined for
A higher sphere; that heaven was made for me;

For *all*—if we accept the gift, and mount
Faith's ladder, as the word of life directs
This life is not our destiny; 'tis but
A prelude to a state eternal, a
Mere beginning of existence, when once
Begun, that ne'er shall cease to be. Life! Life!
What art thou *now*—what art thou doomed to be?
A shade; a substance; dream; reality;
A blessing or a curse; a moment here;
Hereafter an eternity! Dread thought,
Eternity! Eternity! My soul
Is lost in that vast subject, and I shrink
Appalled from the unmeasured time to come.
No more I ask to know its hidden space;
'Twill soon unfold to me, and I shall dwell
Forever in its changeless realm; no more
To feel emotions known on earth, or think
As now I think, or live as now I live;
'Till then, "the mysteries of fate are hid,"
And all lie buried in a world to come.

ALADY M. D. OCCULIST AND AURIST RESTORES to Sight from Blindness, Amaurosis, Granulated Eye Lids and Weak and Sore Eyes of any standing; opening Tear Glands, removing Cataracts, Scums, Films, Ulcers, Tumors, Cancer &c., without operation or pain. Persons wearing spectacles permaturely, enabled to do without them by recovering the natural tone of the eye. Those of the aged strengthened and restored to the natural form or convexity. Worst of cases treated successfully, as seen at the Infirmary, from 12 M to 2 P. M., on Mondays, Wednesdays and Fridays.

NO. 656 SIXTH AVENUE, NEW YORK,

(FIRST FLOOR, ROOMS NOS. 1, 2 & 3)

Abundant personal references given that her remedies are harmless, and her cures performed without operation or the slightest pain.

THE FINEST ILLUSTRATED WORK EVER ISSUED—cost \$12,000.
Price \$2.50.

THE LIFE, TRAVELS AND ADVENTURES OF FERDINAND DE SOTO, DISCOVERER OF THE MISSISSIPPI. 1 vol., 556 pages octavo 30 superb Steel and Wood Engravings, Printed on fine paper and bound elegantly. One of these superb Steel Plates is photographed of the \$10,000 painting ordered by Congress, worth the price of the book.

This book is indispensable to every library. Pronounced by The New York Herald to be “the most interesting book in the English language.” 10,000 Agents wanted to canvass for this work, to whom we will give a district not already taken.

Sent by mail free of postage on receipt of the money. Postmasters are allowed 30 per cent on all subscribers they send us—Address

JAMES T. LLOYD, Publisher, Philadelphia, Penn.

FALL ELECTION.

STATE OF NEW-YORK, }
OFFICE OF THE SECRETARY OF STATE, }
ALBANY, August 2, 1858. }

To the Sheriff of the County of New York:

SIR—NOTICE IS HEREBY GIVEN, THAT AT THE GENERAL Election to be held in this State on the Tuesday succeeding the first Monday in November next, the following officers are to be elected, to wit:

A GOVERNOR, in the place of John A. King;

A LIEUTENANT GOVERNOR, in the place of Henry R. Selden;

A CANAL COMMISSIONER, in the place of Samuel B. Ruggles, appointed in place of Samuel S. Whallon, deceased;

AN INSPECTOR OF STATE PRISONS, in the place of William A. Russell;

All whose terms of office will expire on the last day of December next.

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Third Congressional District, composed of the First, Second, Third, Fifth and Eighth Wards in the city of New York;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Fourth Congressional District, composed of the Fourth, Sixth, Tenth and Fourteenth Wards in the city of New York;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Fifth Congressional District, composed of the Seventh and Thirteenth Wards of the city of New York, and the Thirteenth, Fourteenth, Fifteenth and Sixteenth Wards of Brooklyn;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Sixth Congressional District, composed of the Eleventh, Fifteenth and Seventeenth Wards in the City of New York;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Seventh Congressional District, composed of the Ninth, Sixteenth, and Twentieth Wards in the City of New York;

And also, a REPRESENTATIVE in the Thirty-sixth Congress of the United States for the Eighth Congressional District, composed of the Twelfth, Eighteenth, Nineteenth, Twenty-first, and Twenty-second Wards in the City of New York.

COUNTY OFFICERS ALSO TO BE ELECTED FOR SAID COUNTY.

SEVENTEEN MEMBERS OF ASSEMBLY;

A SHERIFF, in the place of James C. Willett;

A COUNTY CLERK, in the place of Richard B. Connolly;

FOUR CORONERS, in the place of Frederick W. Perry, Edward Connery, Robert Gamble and Samuel C. Hills;

All whose terms of office will expire on the last day of December next.

The attention of Inspectors of Election and County Canvassers is directed to Chapter 320 of Laws of 1858, a copy of which is printed, for instructions in regard to their duties under said law, "submitting the question of calling a Convention to revise the Constitution and amend the same to the people of the State."

CHAP. 320.

AN ACT to submit the question of calling a Convention to revise the Constitution and amend the same, to the People of the State:

Passed April 17, 1858—three-fifths being present.

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

SECTION 1. The Inspectors of Election in each town, ward, and election district in this State, at the annual election to be held in November next, shall provide a proper box to receive the ballots of the citizens of this State entitled to vote for members of the Legislature at such election. On such ballot shall be written or printed, or partly written and printed, by those voters who are in favor of a Convention, the words: "Shall there be a Convention to Revise the Constitution and amend the same? Yes." And by those voters who are opposed thereto, the words: "Shall there be a Convention to Revise the Constitution and amend the same? No." And all citizens entitled to vote as aforesaid shall be allowed to vote by ballot as aforesaid, in the election district in which he resides, and not elsewhere.

§2. So much of the articles one, two and three, of title four, of chapter one hundred and thirty, of an act entitled "An act respecting elections other than for militia and town officer," passed April fifth, eighteen hundred and forty-two, and the acts amending the same, as regulates the manner of conducting elections and challenges oaths to be administered, and inquiries to be made, of persons

offering to vote, shall be deemed applicable to the votes to be given or offered under the act; and the manner of voting and challenges, and the penalties for false swearing, prescribed by law, are hereby declared in full force and effect in voting or offering to vote under this act.

§3. The said votes given for and against a convention, in pursuance of this act, shall be canvassed by the Inspectors of the several election districts or polls of the said election in the manner prescribed by law, and as provided in article four, of title four, of chapter one hundred and thirty of the said act, passed April fifth, eighteen hundred and forty-two, and the acts amending the same, as far as the same are applicable; and such canvass shall be completed by ascertaining the whole number of votes given in each election district or poll for a convention, and the whole number of votes given against such convention, in the form aforesaid; and the result being found, the inspectors shall make a statement in words, at full length, of the number of ballots received in relation to such convention, and shall also state in words, at full length, the whole number of ballots having thereon the words, "Shall there be a Convention to revise the Constitution and amend the same? No." Such statements as aforesaid shall contain a caption, stating the day on which, and the number of the district, the town or ward, and the county at which the election was held, and at the end thereof a certificate that such statement is correct in all respects, which certificate shall be subscribed by all the inspectors, and a true copy of such statement shall be immediately filed by them in the office of the clerk of the town or city.

§4. The original statements, duly certified as aforesaid, shall be delivered by the inspectors, or one of them to be deputed for that purpose, to the supervisor, or, in case there be no supervisor, or he shall be disabled from attending the board of canvassers, then to one of the assessors of the town or ward, within twenty-four hours after the same shall have been subscribed by such inspectors, to be disposed of as other statements at such election, are now required by law.

§5. So much of articles first, second, third, and fourth, of title fifth, of chapter one hundred and thirty, of the act entitled, "An act respecting elections other than for militia and town officers," and the acts amending the same, as regulates the duties of County Canvassers and their proceedings, and the duty of County Clerks, and the Secretary of State, and the Board of State Canvassers, shall be applied to the canvassing and ascertaining the will of the people of this State in relation to the proposed convention; and if it shall appear that a majority of the votes or ballots given in and returned as aforesaid are against a convention, then the said canvassers are required to certify and declare that fact by a certificate, subscribed by them, and filed with the Secretary of State; but if it shall appear by the said canvass that a majority of the ballots or votes given as aforesaid are for a convention, then they shall by like certificates, to be filed as aforesaid, declare that fact; and the said Secretary shall communicate a copy of such certificate to both branches of the Legislature, at the opening of the next session thereof. Yours, respectfully,

GIDEON J. TUCKER, Secretary of State.

SHERIFF'S OFFICE, }

NEW YORK, August 4, 1858. }

The above is published pursuant to the notice of the Secretary of State, and the requirements of the Statute in such case made and provided.

*** END OF THE PROJECT GUTENBERG EBOOK STEPHEN H.
BRANCH'S ALLIGATOR, VOL. 1 NO. 23, SEPTEMBER 25, 1858 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.